

Warsaw, January 18, 2023

Decision

DKE.523.13.2021

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000, as amended) and Article 160 paragraphs 1 and 2 of the Act on the Protection of Personal Data of May 10, 2018 (Journal of Laws of 2019, item 1781) in connection with Article 12 point 2, Article 23 paragraph 1 point 5, Article 32 paragraph 1 point 5, and Article 33 paragraph 1 of the Act of August 29, 1997 on the Protection of Personal Data (Journal of Laws of 2016, item 922, as amended), as well as Article 6 paragraph 1 letter f), Article 15 paragraph 1 letters b) and c), Article 17 paragraphs 1 and 3 letter e) and Article 57 paragraph 1 letters a) and f) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016 on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), after conducting administrative proceedings regarding the complaint of Mr. W. Ł., residing in M. at ul. (...), regarding the processing of his personal data by S. based in G. at ul. (...) and by A. sp. z o.o. based in S. at ul. (...), the President of the Personal Data Protection Office denies the request.

Justification

The complaint of Mr. W. Ł., residing in M. at ul. (...), hereinafter referred to as the "Complainant," regarding the processing of his personal data by S. based in G. at ul. (...), hereinafter referred to as "S." and by the company A. sp. z o.o. based in S. at ul. (...), hereinafter referred to as "Company A," was submitted to the Bureau of the General Inspector for Personal Data Protection (currently: the Personal Data Protection Office). The Complainant alleged that S., with whom he had a loan agreement, transferred (in his opinion unlawfully) his personal data – in connection with the assignment of receivables – to the company A. S.a.r.l. based in L., (...) (hereinafter referred to as "Company AS."), and subsequently to Company A in connection with the fiduciary assignment of receivables. The Complainant requested a "determination of the unlawful transfer" of his personal data by S. to Company AS. and Company A, the deletion of his personal data by Company A, a "suspension of the transfer" of his personal data to Company AS., and "information on what personal data was transferred" by S. to Company AS. and subsequently to Company A. Justifying his allegation of "unlawful transfer" of personal data, the Complainant particularly pointed out that a condition for the lawful transfer of personal data to another entity is an existing agreement with that entity or the written consent of the data subject for the transfer of personal data to that entity. The Complainant did not enter into any agreement with Company AS, nor did he give consent for S. to transfer his personal data to that entity.

During the administrative proceedings conducted in this matter, the President of the Personal Data Protection Office, hereinafter referred to as the "President of UODO," established the following.

Factual Background

On May 10, 2001, the Complainant joined S. By submitting a written "Membership Declaration," the Complainant provided S. with the personal data required by this document.

On May 11, 2001, the Complainant submitted a "Loan Application" to S. along with a "Credit Interview Questionnaire," in which documents he provided S. with additional personal data. On May 23, 2001, the Complainant entered into a "Discount Loan Agreement No. (...)" with S. The personal data obtained from the Complainant was processed by S.:

- a) in the register of members of S. – based on Article 23 paragraph 1 point 2 of the Act of August 29, 1997 on the Protection of Personal Data (Journal of Laws of 2016, item 922, as amended), hereinafter referred to as "u.o.d.o. 1997,"
- b) for the purpose of executing the discount loan agreement No. (...) – based on Article 23 paragraph 1 point 3 of u.o.d.o. 1997.

Due to the Complainant's failure to comply with the terms of the "Discount Loan Agreement No. (...),"

S. referred the matter to the District Court in B., which, by an order for payment dated April 11, 2002, case file No. (...), awarded the amount resulting from the loan agreement along with ancillary claims. The order for payment became final, and on December 18, 2002, an enforcement clause was granted in favor of S. Based on the enforcement title obtained by S., the Court Bailiff at the District Court in M. M. D. initiated enforcement proceedings against the Complainant under case file No. (...).

On January 29, 2015, S. entered into a "Receivables Assignment Agreement" with Company AS., by which it transferred to Company AS. the receivable resulting from the unpaid discount loan No. (...). In connection with the change of creditor and in response to S.'s request, by a decision dated June 1, 2016, the Court Bailiff at the District Court in M. M. D. discontinued the enforcement proceedings under case file No. (...).

10. After the assignment of the receivable to Company AS., S. – in accordance with its declarations – processes his personal data for the following purposes and based on the following legal grounds:

a) for the purpose of executing the membership agreement with S. – based on Article 6(1)(b) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), hereinafter referred to as the "Regulation 2016/679",

b) for purposes related to the fulfillment of legal obligations imposed on S., inter alia, under the provisions of the Act of September 29, 1994, on Accounting (Journal of Laws of 2021, item 217, as amended), the Act of September 16, 1982, on Cooperative Law (Journal of Laws of 2021, item 648, as amended), the Act of November 5, 2009, on Cooperative Savings and Credit Unions (Journal of Laws of 2022, item 924, as amended), and the Act of March 1, 2018, on Counteracting Money Laundering and Financing of Terrorism (Journal of Laws of 2022, item 593, as amended) – based on Article 6(1)(c) of Regulation 2016/679,

c) for the purposes of this administrative proceeding – based on Article 6(1)(c) of Regulation 2016/679,

d) for purposes arising from the legitimate interests pursued by S., namely to protect against claims from the Complainant – based on Article 6(1)(f) of Regulation 2016/679.

11. On January 29, 2015, Company AS. entered into an "Agreement on Debt Collection Services (...)" concerning the Fund (...)" with Company A. By virtue of this agreement, Company AS. made a fiduciary transfer of a package of receivables to Company A., which package also included the receivable against the Complainant acquired by Company AS. from S. (see point 8 of the justification of this decision). According to the agreement, Company A. (as the fiduciary creditor) undertook to provide management services regarding the receivables subject to the fiduciary transfer, and in particular to undertake collection activities on behalf of Company AS. "as the exclusive and final beneficiary" of the receivables.

12. By a ruling dated March 16, 2017, case file (...), the District Court in B., 1st Civil Division, granted enforceability to the payment order dated April 11, 2002, case file (...), in favor of Company A.

13. In relation to the personal data of the Complainant, Company AS. and Company A. act as joint controllers, as referred to in Article 26(1) of Regulation 2016/679.

14. The personal data of the Complainant are processed by the joint controllers – Company AS. and Company A. (hereinafter collectively referred to as the "Joint Controllers") – for the following purposes and based on the following legal grounds:

a) for the purpose of pursuing civil claims, thus for the purpose arising from the legitimate interest pursued by the Joint Controllers (based on Article 6(1)(f) of Regulation 2016/679),

b) for the purpose of defending against potential claims against the Joint Controllers (based on Article 6(1)(f) of Regulation 2016/679),

c) for analytical and statistical purposes related to risk management, organization, and optimization of debt collection processes and control over the course of these processes (based on Article 6(1)(f) of Regulation 2016/679),

d) for the purpose of fulfilling legal obligations imposed on the Joint Controllers (based on Article 6(1)(c) of Regulation 2016/679), including those arising from:

- Article 74 of the Act of September 29, 1994, on Accounting (Journal of Laws of 2021, item 217, as amended),
- Article 86 of the Act of August 29, 1997, Tax Ordinance (Journal of Laws of 2022, item 2651, as amended).

15. The Complainant did not approach either S., Company AS., or Company A. with a request for the information specified in Article 32(1)(1-5a) of the Act on Personal Data Protection of 1997 regarding the processing of his personal data. After reviewing all the evidence collected in the case, the President of the Personal Data Protection Office considered the following.

Legal Provisions

16. According to Article 34(1) of the Act of May 10, 2018, on Personal Data Protection (Journal of Laws of 2019, item 1781), hereinafter referred to as "u.o.d.o. 2018", the President of UODO is the competent authority in matters of personal data protection. As stated in Article 34(2) of u.o.d.o. 2018, the President of UODO is the supervisory authority within the meaning of Regulation 2016/679.

17. Pursuant to Article 57(1) of Regulation 2016/679, without prejudice to other tasks specified under this regulation, each supervisory authority in its territory (the President of UODO in the territory of the Republic of Poland) monitors and enforces the application of this regulation (lit. a) and considers complaints lodged by the data subject or by a representative authorized by them – in accordance with Article 80 of Regulation 2016/679 – and, to the appropriate extent, conducts proceedings regarding these complaints and informs the complainant of the progress and results of these proceedings within a reasonable time (lit. f).

18. According to Article 104 § 1 and 2 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000, as amended), hereinafter referred to as "k.p.a.", which act – pursuant to Article 160(2) of u.o.d.o. 2018 – applies in this proceeding, the President of UODO, as a public administration authority, resolves the matter (including considering complaints lodged by persons whose data are concerned) by issuing decisions that resolve the matter in its entirety or in part or in another manner.

****Ending the Case.****

19. Regulation 2016/679 applies from May 25, 2018 (Article 99(2) of Regulation 2016/679); on the same day, the Act on the Protection of Personal Data of 2018 (Article 176 of the Act) came into force.

20. Before May 25, 2018, the rules for processing personal data and the rights of individuals whose personal data was or could be processed in data sets were governed by the Act on the Protection of Personal Data of 1997.

21. As of May 25, 2018, the Office of the General Inspector for Personal Data Protection became the Personal Data Protection Office. Proceedings conducted by the General Inspector for Personal Data Protection (hereinafter referred to as "GIODO"), initiated and not concluded before May 25, 2018, are conducted by the President of the Personal Data Protection Office (UODO), based on the Act on the Protection of Personal Data of 1997, in accordance with the principles specified in the Code of Administrative Procedure. All actions taken by GIODO before May 25, 2018, remain effective (Article 160(1-3) of the Act on the Protection of Personal Data of 2018).

22. According to the wording of Article 12(2) of the Act on the Protection of Personal Data of 1997, applied in connection with Article 160(2) of the Act on the Protection of Personal Data of 2018, the tasks of GIODO (currently the President of UODO) include issuing administrative decisions and handling complaints regarding the implementation of personal data protection regulations. According to Article 18(1) of the Act on the Protection of Personal Data of 1997, applied in connection with Article

160(2) of the Act on the Protection of Personal Data of 2018, the President of UODO, ex officio or at the request of the interested party, by way of an administrative decision, orders the restoration of a lawful state, particularly the removal of irregularities (point 1), the suspension of the transfer of personal data to a third country (point 4), and the deletion of personal data (point 6).

23. According to the wording of Article 23(1) of the Act on the Protection of Personal Data of 1997 (in force until May 25, 2018), the processing of personal data was permissible when: the person to whom the data related had given consent, unless it concerned the deletion of data relating to them (point 1), it was necessary for the realization of a right or the fulfillment of an obligation arising from a legal provision (point 2), it was necessary for the performance of a contract when the person to whom the data related was a party to it or when it was necessary to take actions before concluding a contract at the request of the person to whom the data related (point 3), it was necessary to perform specific tasks required by law carried out for the public good (point 4), it was necessary to fulfill legally justified purposes pursued by data controllers or data recipients, and the processing did not violate the rights and freedoms of the person to whom the data related (point 5). According to Article 23(4)(2) of the Act on the Protection of Personal Data of 1997, a legally justified purpose referred to in paragraph 1 point 5 was considered, in particular, the pursuit of claims arising from conducted business activities.

24. According to Article 33(1) in connection with Article 32(1)(5) of the Act on the Protection of Personal Data of 1997, at the request of the person to whom the data related, the data controller was obliged to provide that person with information, among others, about the manner of data sharing, and in particular information about the recipients or categories of recipients to whom the data was disclosed.

25. Currently, the processing of personal data is lawful when the controller has at least one of the grounds specified in Article 6(1) of Regulation 2016/679 (which corresponds to the provision of Article 23(1) of the Act on the Protection of Personal Data of 1997 in force until May 25, 2018). According to this provision, the processing of personal data is lawful only if at least one of the following conditions is met: a) the person to whom the data relates has given consent to the processing of their personal data for one or more specific purposes; b) processing is necessary for the performance of a contract to which the data subject is a party or for taking steps at the request of the data subject prior to entering into a contract; c) processing is necessary for compliance with a legal obligation to which the controller is subject; d) processing is necessary to protect the vital interests of the data subject or another natural person; e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; f) processing is necessary for the purposes of legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

26. Currently, the equivalent of Article 33 of the Act on the Protection of Personal Data of 1997 (in force until May 25, 2018) is Article 15 of Regulation 2016/679, which states that the data subject has the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed, and if that is the case, they have the right to access such data and to information, among others, about the categories of personal data being processed and about the recipients to whom the data has been disclosed (Article 15(1)(b) and (c) of Regulation 2016/679).

27. According to Article 17(1) of Regulation 2016/679, the data subject has the right to request the controller to erase personal data concerning them without undue delay, and the controller is obliged to erase such data in the circumstances specified in Article 17(1) and (2), but in accordance with the exception provided for in Article 17(3)(e), this right does not apply to the extent that processing is necessary for the establishment, exercise, or defense of legal claims.

****Legal Assessment****

28. As follows from the wording of Articles 160(1-3) of the Act on the Protection of Personal Data of 2018 (see point 21 of the justification of this decision), the present proceedings, initiated...

****29.**** In the judgment of May 7, 2008, in case file I OSK 761/07 (Lecelis no. 138727), the Supreme Administrative Court stated that "when examining the legality of the processing of personal data, the GIODO is obliged to determine whether, at the date of issuing the decision in the matter, the data of a specific entity is being processed and whether this is done in a lawful manner."

****30.**** In this case, the Complainant submitted to the GIODO (currently: the President of UODO) a request for:

- a) "establishing the unlawful transfer" by S. of his personal data to Company AS. (in connection with the debt assignment agreement of January 29, 2015 – see point 8 of the justification of this decision) and subsequently their transfer by Company AS. to Company A. (in connection with the fiduciary debt assignment agreement of January 29, 2015 – see point 11 of the justification of this decision),
- b) ordering the removal of his personal data by Company A.,
- c) ordering S. – based on Article 18(1)(4) of the u.o.d.o. 1997 – to cease transferring his personal data to Company AS. based in L,
- d) ordering S. – based on Articles 32 and 33 of the u.o.d.o. 1997 – to indicate which of his personal data was transferred to Company AS. and subsequently to Company A.

****Ad to the Complainant's request point 30 a)****

****31.**** Referring to the Complainant's request for "establishing the unlawful transfer" of his personal data by S. to Company AS., and subsequently their transfer by Company AS. to Company A., it should be noted that this transfer of personal data occurred in the execution of debt assignment agreements with respect to the Complainant concluded between S. and Company AS., and subsequently between Company AS. and Company A. These assignments took place in connection with the Complainant's failure to fulfill obligations arising from the "Discount Loan Agreement No. (...)" dated May 23, 2001.

****32.**** The existence of the debt of S. towards the Complainant arising from the "Discount Loan Agreement No. (...)" dated May 23, 2001, is undisputed. This fact is confirmed by the enforceable payment order dated April 11, 2002, case file (...), (see point 6 of the justification of this decision). The Complainant himself did not deny this circumstance; rather, he implicitly confirmed it by not requesting the removal of his personal data – similarly to the request directed to Company A. – also by S.

****33.**** The effective transfers of debts, from the perspective of civil law, resulting in a change of the creditor in the contractual relationship arising from the "Discount Loan Agreement No. (...)", were evidenced by both S. – the original creditor, and by Company A. – the final creditor, through appropriate written agreements. The effectiveness and compliance with civil law of both debt assignment agreements was confirmed by the District Court in B., which on March 16, 2017, granted enforceability to the payment order dated April 11, 2002, case file (...), in favor of Company A.

****34.**** The debt assignment agreements concluded (without obtaining the Complainant's consent) between S. and Company AS., and subsequently between Company AS. and Company A., are based on Article 509 § 1 of the Act of April 23, 1964, the Civil Code (Journal of Laws of 2022, item 1360, as amended), which states that a creditor may transfer the debt to a third party (assignment) without the debtor's consent, unless it contradicts the law, a contractual provision, or the nature of the obligation. The possibility of transferring debts concerning a consumer (who in the contractual obligation arising from the "Discount Loan Agreement No. (...)" was the Complainant) is permitted by the case law of civil and administrative courts. The Supreme Court in its judgment of September 26, 2008, case file V CSK 105/08, stated: "[The legislator] did not establish a prohibition on the transfer of debts without the consumer's consent. The mere change of the creditor in relation to a strictly defined debt does not lead to a change in the identity of the obligation relationship, nor does it create such serious difficulties for the debtor that it would be necessary to prohibit it for the protection of his interests." (Legalis no. 340508). The Supreme Administrative Court, in turn, in its judgment of June 6, 2005, case file I OPS 2/05, issued by a panel of seven judges, ruled: "It cannot therefore be assumed in advance that a debt cannot be transferred to a third party when the debtor is a consumer, without the debtor's consent (Article 509 § 1 of the Civil Code), because it would contradict the law (Article 3853(5) of the Civil Code)" (Legalis no. 71134).

****35.**** The transfer of the debt is associated in a way...

****obvious with the transfer to the purchaser of the receivables of the personal data of the debtor necessary to take appropriate actions aimed at recovering the receivables. Such transfer of personal data should be considered as processing necessary for the fulfillment of the legally justified purposes**

of the administrator, as explicitly stated in Article 23(4)(2) of the Personal Data Protection Act of 1997 in force on January 29, 2015, that is, on the date of conclusion of both significant agreements regarding the assignment of receivables in this case. The legally justified purpose in this case for S. (the assignor of the receivables) is to satisfy his claim against the Appellant from the price obtained from the sale of the receivables, while for Company AS. (the purchaser of the receivables) – the possibility of pursuing the acquired claim in accordance with applicable legal provisions. It should also be noted at this point that the scope of personal data transferred by S. to Company AS. is necessary for the purpose of pursuing the claim; this scope is defined by the content of the documents provided by S. to Company A. indicating the source of this obligation (a copy of the "Discount Loan Agreement No. (...)" dated May 23, 2001) and confirming its existence and the possibility of its enforcement by the purchaser of the receivables (a copy of the payment order dated April 11, 2002, case file No. (...), a copy of the Court Bailiff's decision dated June 1, 2016, on the discontinuation of enforcement proceedings, case file No. (...)).**

****36.** The pursuit of claims is a common phenomenon in economic transactions and at the same time a natural consequence of entering into contracts by equal and generally consciously and freely acting parties, who at the time of concluding the contract accept and confirm the established conditions, including those concerning the performance of mutual obligations and the recognition – in the event of non-performance of the obligation by one of the parties – of the right of the other party to pursue their performance – voluntarily or through other means and instruments permitted by law. The Appellant at the time of concluding the loan agreement acknowledged and voluntarily accepted such rights of S. This is evidenced, among other things, by the Appellant's signing and handing over to S. of a blank promissory note as security for the performance of the loan agreement. Therefore, it cannot be considered that the processing of the Appellant's personal data for the purpose of pursuing claims arising from the agreement (even in the case of a change of creditor) violates his rights and freedoms. The Supreme Court took such a position in the judgment cited in point 34 of the justification of this decision, case file No. V CSK 105/08, stating that "the change of the creditor in relation to a strictly defined receivable does not lead to a change in the identity of the obligation relationship, nor to such serious difficulties for the debtor that for the protection of his interests it should be prohibited."**

****37.** In summary, it should be stated that the transfer of the Appellant's personal data that took place in connection with the execution of the agreements for the assignment of receivables concluded between S. and Company AS., and subsequently between Company AS. and Company A., was based on the provision of Article 23(1)(5) of the Personal Data Protection Act of 1997. It fulfilled, firstly, the legally justified purpose of S. (pursuing claims from the loan agreement concluded with the Appellant); secondly, it was necessary for the realization of this purpose (due to the Appellant's failure to fulfill contractual obligations); and thirdly, it did not violate the rights and freedoms of the Appellant (since he entered into the agreement with S. voluntarily, being aware of the rights associated with pursuing claims arising from the agreement).**

****Regarding the Appellant's request in point 30 b)****

****38.** The consequence of stating that the transfer of the Appellant's personal data, which took place in connection with the execution of the agreements for the assignment of receivables concluded between S. and Company AS., and subsequently between Company AS. and Company A., was based on the applicable provision of Article 23(1)(5) of the Personal Data Protection Act of 1997, is the recognition that Company A. as of the date of issuing this decision processes the Appellant's personal data legally, and the Appellant's request to order the removal of his personal data by this company is unfounded.**

****39.** Currently (as of the date of issuing this decision), Company A. processes the Appellant's personal data based on the provision of Article 6(1)(f) of Regulation 2016/679, which corresponds to Article 23(1)(5) of the Personal Data Protection Act of 1997. As demonstrated in points 35-37 of the justification of this decision, it is pursuing its legally justified interest (legally and effectively pursuing the acquired receivable against the Appellant); the processing of the Appellant's personal data by it is necessary for this purpose, and the rights and freedoms of the Appellant are not superior to the interests of the administrator.**

****40.** Additionally, Company A. also processes the Appellant's personal data for other purposes arising from the fact of becoming the creditor of the Appellant.**

****a)** for the purpose of defending against potential claims of the Appellant (based on Article 6(1)(f) of Regulation 2016/679),**

****b)** for analytical and statistical purposes related to risk management, organization, and optimization of receivables management processes and control over the course of these processes (based on Article 6(1)(f) of Regulation 2016/679),**

****c)** for the purpose of fulfilling its legal obligations (based on Article 6(1)(c) of Regulation 2016/679), including those arising from Article 74 of the Accounting Act of September 29, 1994, and from Article 86 of the Tax Ordinance of August 29, 1997.**

****Regarding the Appellant's request in point 30 c)****

****41.** The provision of Article 18(1)(4) of the Personal Data Protection Act of 1997, which the Appellant referred to when requesting the suspension of the transfer of his personal data to Company A., granted the GIODO the authority to order – in the case of**

****Statement of Violation of Personal Data Protection Regulations – Suspension of the Transfer of Personal Data to a Third Country.**** According to Article 7 point 7 of the Personal Data Protection Act of 1997, a "third country" within the meaning of this act was a country not belonging to the European Economic Area (hereinafter "EEA").

42. The Grand Duchy of Luxembourg, where Company AS. is headquartered, has been a member of the EEA since the entry into force of the "Agreement on the European Economic Area" dated May 2, 1992, that is, since January 1, 1994. Therefore, in this case, there was no transfer of personal data to a third country (not belonging to the EEA). For this reason, the request of the Complainant should be considered unfounded.

43. Regardless of the above, it should be noted that the transfer of the Complainant's personal data by S. to Company AS. was a one-time event. After the transfer of the Complainant's personal data in execution of the "Debt Assignment Agreement" dated January 29, 2015, further transfers of this data did not occur. For this reason as well, the request to order the "suspension of the transfer" of the Complainant's personal data to a third country is baseless.

****Regarding the Complainant's Request Point 30 d)****

44. Referring to the Complainant's request to order S. to indicate to the Complainant which of his personal data was transferred to Company AS., and subsequently to Company A., it should be stated that this request is unjustified and arises from a misunderstanding of the role of the supervisory authority, which is the President of the Personal Data Protection Office (UODO) in the area of personal data protection. According to Article 57(1)(a) of Regulation 2016/679, the tasks of the President of UODO include monitoring and enforcing compliance with this legal act. In particular, the President of UODO considers complaints lodged by individuals whose data is concerned (Article 57(1)(f) of Regulation 2016/679). In the event of a violation by the administrator or processor of the rights of such an individual, the President orders compliance with the request of that individual (Article 57(2)(c) of Regulation 2016/679), and in cases initiated and not concluded before May 25, 2018, orders the restoration of a lawful state based on Article 18(1) of the Personal Data Protection Act of 1997 (see point 28 of the justification of this decision). The above provisions do not imply the competence of the President of UODO to replace the individual whose data is concerned in exercising their rights under the personal data protection regulations or to act as a sort of proxy for the party before the administrator in the realization of those rights.

45. In his complaint to the GIODO, invoking Articles 32 and 33 of the Personal Data Protection Act of 1997, the Complainant requested "to state which personal data was transferred" by S. to Company AS., and subsequently to Company A. Article 32 of the Personal Data Protection Act of 1997, in force at the time of filing the complaint, established for individuals whose data is processed by the administrator the right to control that processing, and in particular the right to obtain information about the manner and scope of that processing. However, Article 33 of the Personal Data Protection Act of 1997 clearly indicated that this right is exercised at the request of the individual whose data is

concerned.

46. Similarly, the right of access to personal data processed by the administrator and to information about that processing was constructed in Article 15 of Regulation 2016/679, which was in force at the time of issuing this decision. The wording used in this provision, "the data subject [...] is entitled to obtain access," indicates the entitlement of the individual whose data is processed, rather than an absolute obligation of the administrator to act independently of the will and initiative of that individual (such a different construction is formulated in Articles 13 and 14 of Regulation 2016/679, which provisions speak of the informational obligations of the administrator towards the individual from whom they obtained the data). Thus, in the current legal state, the right of access to information about the processing of personal data is exercised at the request of the individual whose data is concerned. Only a refusal or lack of response from the administrator to such a request creates a state of violation of the personal data protection regulations by them, specifically a state of violation of the right of access of the individual whose data is concerned to their personal data and to information related to its processing. The individual affected by such a violation has the right to lodge a complaint with the President of UODO; the President of UODO has, in turn (and only in the case of establishing such a violation), the right and obligation to apply the measures within their competence. As stated in Article 18(1) of the Personal Data Protection Act of 1997 (applicable in this case in connection with Article 160(2) of the Personal Data Protection Act of 2018), GIODO (currently the President of UODO) orders the restoration of a lawful state in the event of a violation of personal data protection regulations.

47. In this case, the Complainant did not address either S., Company AS., or Company A. with a request for the information specified in Article 32(1) points 1-5a of the Personal Data Protection Act of 1997 regarding the processing of his personal data. This request was formulated by the Complainant only in the complaint to the GIODO. In this regard, and considering the above considerations, it should be stated that there are also no grounds for the President of UODO to issue an order to S. to restore compliance with the law regarding this request.

In summary, it should be stated that none of the requests formulated by the Complainant in the complaint deserves to be upheld. In the presented factual and legal state, the President of UODO is obliged to decide as in the operative part.

****Instruction****

Based on Article 127 § 3 of the Code of Administrative Procedure, the party has the right to submit a request for reconsideration of the case within 14 days from the date of its delivery to the party. If the party does not wish to exercise the right to submit a request for reconsideration of the case, they have...

right to file a complaint against the decision to the

Provincial Administrative Court in Warsaw

within 30 days from the date of its delivery to the party.

The complaint is submitted through the President of the Office

for Personal Data Protection (address: ul. Stawki 2, 00-93

Warsaw). The fee for the complaint is 200 zlotys. The party

has the right to apply for legal aid, including

exemption from court costs.

Print article

Metadata

Provider:

Department of Penalties and Enforcement

Created by:

Jan Nowak

2023-01-18

Entered by:

Mathias Proch

2023-10-23 13:00:26

Last modified by:

Edyta Madziar
2023-10-26 11:20:27